

(5). That "where land sold is held by under-lease, the purchaser shall assume, unless the contrary appears, that the under-lease and every superior lease were duly granted; and, on production of the receipt for the last payment due for rent under the under-lease before the date of actual completion of the purchase, he shall assume, unless the contrary appears, that all the covenants and provisions of the under-lease have been duly performed and observed up to the date of actual completion of the purchase, and * further that all rent due under every superior [*440] lease, and all the covenants and provisions of every superior lease, have been paid and duly performed and observed up to that date."

(6). That "on a sale of any property, the expenses of the production and inspection of all documents, not in the vendor's possession, and the expenses of all journeys incidental to such production or inspection, and the expenses of searching for, procuring, making, verifying, and producing all certificates, declarations, evidences and information not in the vendor's possession, and all copies or abstracts of, or extracts from, any documents not in the vendor's possession," if required by a purchaser for any purpose, shall be borne by him (a); "and where the vendor retains possession of any document, the expenses of making any copy thereof, attested or unattested, which a purchaser requires to be delivered to him, shall be borne by that purchaser."

(7). That "on a sale of any property in lots, a purchaser of two or more lots, held wholly or partly under the same title, shall not have a right to more than one abstract of the common title, except at his own expense."

And by the 13th section, "on a contract to grant a lease for a term of years, to be derived out of a leasehold interest with a leasehold reversion, the intended lessee shall not have the right to call for the title to that reversion."

[(a) It has been held that under this section the purchaser must bear the expense of procuring and making an abstract of any deed not in the vendor's possession of which he requires an abstract, even though it

forms part of the title which the vendor is bound to adduce, and the vendor is in a position to compel its production: *Re Johnson and Tustin*, 28 Ch. D. 84; reversed on appeal, 30 Ch. Div. 42.]